

**Before the
Federal Maritime Commission**

Docket No. 24-17

**Samsung Electronics America, Inc.
v.
Orient Overseas Container Line, Limited,
and OOCL (Europe) Ltd.**

**RESPONSE TO COMPLAINANT’S MOTION TO
DISMISS RESPONDENTS’ COUNTERCLAIM**

Orient Overseas Container Line, Limited and OOCL (Europe) Ltd. (“OOCL” or “Respondents”) respond to the motion of Samsung Electronics America, Inc. (“SEA” or “Complainant”) to dismiss the Counterclaim (“Motion”).

As OOCL’s Counterclaim arises from the same Service Contracts upon which the Third Party Complaint against SEA’s parent, Samsung Electronics Company Ltd. (“Samsung”) is based, we respectfully suggest, for the sake of judicial economy and clarity to all parties, that the ALJ defer ruling on SEA’s Motion until any procedural issues raised by Samsung have been resolved and that entity is before this Court.

INTRODUCTION

The Counterclaim alleges that SEA has knowingly and willfully, directly or indirectly, by an unfair means or device, attempted to obtain ocean transportation for property at less than the charges that would otherwise apply. 46 U.S.C. 41102(a). SEA’s parent, Samsung, entered into a service contract with OOCL under which it knowingly accepted, on behalf of itself and its affiliates (including SEA) responsibility for charges incurred by its customer-nominated trucker, as part of a package that

gave it rates lower than OOCL would have otherwise agreed. After benefitting from those lower rates, Samsung (through SEA) is now attempting to avoid application of terms to which it agreed, and thereby unjustly and unfairly obtain benefits beyond those provided for in the Service Contracts.

These facts, which are pled clearly and succinctly in the Counterclaim, are sufficient to support OOCL's allegation that SEA's efforts constitute an attempt to obtain ocean transportation at less than legally applicable rates, all in violation of 46 U.S.C. §41102(a).

For the reasons described below, SEA's Motion to dismiss the Counterclaim should be denied.

STATEMENT OF ALLEGED FACTS

The facts alleged in the Counterclaim, which will be proven through the submission of detailed evidence at the conclusion of discovery, are summarized below.

The claims made by SEA in its Complaint arise from services provided by OOCL during the 2021-2022 time period, pursuant to Service Contracts between it and Samsung. At the time it negotiated these Service Contracts with OOCL, Samsung required that the trucking of its cargo be done by motor carriers chosen by its consignee ("customer-nominated trucker or "CNT"). (CC, ¶3).¹ SEA was one of Samsung's consignees and was designated as an Affiliate of Samsung in Appendices to the Service Contracts. (CC, ¶¶8-9) As a named Affiliate, SEA was bound to the Service Contracts' terms and conditions. (CC, ¶¶5-6). Pursuant to the terms of the Service Contracts and the tariff incorporated therein by reference, Samsung and SEA as owner of the shipments for which it was designated as consignee, employed the CNTs and remained responsible for directing their activities. (CC, ¶¶17, 33). OOCL paid these motor carriers for the trucking of shipments moving under "store door" terms, but made these payments solely as an agent for Samsung. (CC, ¶¶17; 32). OOCL's role was limited with respect to the CNTs and any activities it performed were done solely as an agent for

¹ "CC, ¶__" refers to paragraphs of the Respondents' Counterclaim.

the principal, Samsung. (CC, ¶¶17; 32). Further, apart from paying the truckers as agent for Samsung, OOCL was not responsible for any charges incurred by SEA or its CNT, such as detention, demurrage, and storage at ocean terminals, rail terminals, or other facilities. (CC, ¶33).

As facts developed through discovery will show, SEA was bound by the Service Contract to the terms to which Samsung agreed, which included the incorporation of the following provision of Tariff Rule OOLL-100 Rule Number: T-26, which stated:

"...when a customer nominated trucker (CNT) is used for store door delivery for inbound shipment (or door pick up for outbound shipment) at the request of Shipper (or any other entity with an interest in the cargo), it is hereby agreed that the following terms and conditions shall apply:

- Carrier will act as agent of Shipper for purposes of arranging the trucking, and the contract of carriage for inland door delivery transportation shall be deemed to be between the trucker and Shipper or the owner of the cargo. The CNT will be employed by the Shipper or the owner of the cargo, not Carrier, even though Carrier's rates are inclusive of door delivery. Carrier shall pay the CNT only as agent for Shipper." (CC, ¶17).

It was SEA's mismanagement of its CNTs that resulted in significant detention and demurrage costs for SEA. (CC, ¶¶33-39). Under the foregoing provision, the CNTs were contractually obligated to Samsung/SEA for timely pick up of cargo and return of empty containers. Any charges that accrued due to the failure of the CNTs to fulfill those obligations were the responsibility of Samsung/SEA. Moreover, such charges are the responsibility of Samsung/SEA because they were incurred as a result of SEA allowing shipments to linger at marine terminals for periods long past the expiration of free time while awaiting pickup by its CNTs. (CC, ¶¶34-36). SEA ignored multiple and timely communications from OOCL notifying it of each shipment's last free day and accrued demurrage. (CC, ¶35). Further, SEA did not timely respond to "long-dwelling letters" sent by OOCL, seeking instructions with respect to shipments in demurrage which continued to remain at the terminals. (CC, ¶36).

Similarly, detention charges were incurred by SEA due to its failure, and the failure of its CNTs, to timely return OOCL's empty containers prior to the expiration of free time, without fault on the part of OOCL. (CC, ¶37).

OOCL had promulgated a robust and readily available system for cargo owners to contest detention and demurrage charges, which was characterized during a VOCC Audit Program as meeting the FMC's "best practices" for dispute resolution processes. (CC, ¶20). SEA, however, did not utilize this program to challenge or even mitigate the detention and demurrage charges that it incurred. (CC, ¶21).

SEA and Samsung's attempts to undo the agreements it had made with ocean carriers were not limited to OOCL. Upon information and belief, in the Fall of 2022, SEA implemented a broad scheme to obtain transportation for less than applicable rates from several ocean carriers comprising virtually all of the ocean common carriers that had carried Samsung cargo, demanding that they pay SEA vast amounts, some well over \$20 million. (CC, ¶¶41-2).

In its demand letter to OOCL, SEA claimed it had paid "demurrage, detention, handling and/or storage fees" since 2020 in the amount of USD \$11 million and demanded reimbursement of the amounts it paid (not only to OOCL but also to railroads and other service providers) simply because the underlying shipments moved under store door terms. (CC, ¶18). Inexplicably, the demand did not identify the relevant shipments by bills of lading, container or booking numbers; it did not correlate charges to specific shipments; and, most significantly, the demand did not explain why specific charges for these unidentified shipments should be mitigated or refunded. (CC, ¶19). And also inexplicably, SEA did not in its demand letter or additional correspondence/discussions, justify why it failed to timely challenge detention and demurrage charges at the time they were incurred. This delay in presenting its claims and the way in which they were eventually presented is suspect

because, if SEA truly believed that it was entitled to reimbursement of the charges it has claimed in this proceeding, it should have used OOCL's dispute resolution system to timely challenge the invoices it received, rather than just pay them without objection, then present OOCL with an unsupported "bill" for USD \$11 million more than 2 years later.²

In support of its tenuous position, SEA has asserted that even though Samsung employed the CNTs under the respective Service Contracts and tariff, OOCL was somehow responsible for SEA's failure to responsibly manage the Samsung/SEA supply chain. Its basis for this novel and unsupported claim was a single phrase in the shipments' bills of lading – "store-door" – a delivery term which SEA has mis-interpreted so as to shift a responsibility onto the ocean common carriers that the Service Contracts and the tariff they incorporated imposed upon Samsung and its Affiliate, SEA.

As these alleged facts support the Counterclaim against SEA for violation of 46 U.S.C. §41102(a), SEA's Motion should be denied.

LEGAL STANDARD

The Commission evaluates motions to dismiss by applying Fed. R. Civ. P. 12(b) and federal case law as an interpretive guide. *Mitsui O.S.K. Lines Ltd.*, 2011 WL 7144008 at *12; *Marine Transp. Logistics, Inc. v. CMA-CGM (America) LLC*, Dkt. No. 18-07, 2019 WL 5206007, at *2 (FMC Oct. 8, 2019). See Fed. R. Civ. P. 12(b)(6) (failure to state a claim upon which relief can be granted). All well-pleaded factual allegations in the Complaint should be assumed to be true and should be construed in the light most favorable to OOCL. *Cargo One Inc. v. COSCO Container Lines Co., Ltd.*, 28 S.R.R. 1351, 1365 (ALJ 2000).

² The existence of dispute resolution procedures is a factor in assessing the reasonableness of demurrage and detention charges. 46 C.F.R. §545.5(d). A shipper's failure to use such procedures in a timely manner should also be a factor in that analysis.

When evaluating a motion’s 12(b)(6) arguments, the Commission should “construe the factual allegations in the [counterclaim] in the light most favorable to [Respondent] and must grant [Respondent] the benefit of all inferences that can be derived from the facts as alleged in the [counterclaim].” *Marine Transport*, 2019 WL 5206007, at *3. A complaint, and pursuant to the same principle a counterclaim, need only provide a “clear and concise factual statement sufficient to inform each respondent with reasonable definiteness of the acts or practices alleged to be in violation of the law,” 46 C.F.R. § 502.62(a)(iii); see also 5 C.A. Wright & A.R. Miller, Fed. Prac. & Proc. Civ. § 1215 (3d ed. 2010) (“[T]he test of a [counterclaim’s] sufficiency simply is whether the document’s allegations are detailed and informative enough to enable the [counterclaim] defendant to respond.”). A counterclaim must contain—as here—non-conclusory allegations of fact that, if true, would demonstrate that a violation occurred. *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007); see also *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). Accordingly, a “well-pleaded [counterclaim] may proceed even if it strikes a savvy judge that actual proof of those facts is improbable, and that recovery is very remote and unlikely.” *SD3, LLC v. Black & Decker (U.S.) Inc.*, 801 F.3d 412, 418 (4th Cir. 2015) (quoting *Twombly*, 550 U.S. at 556); see also *In re Text Messaging Antitrust Litig.*, 630 F.3d 622, 629 (7th Cir. 2010) (Posner, J.) (plausibility “need not be as great as such terms as ‘preponderance of the evidence’ connote.”).

ARGUMENT

I. The Counterclaim's Allegations that SEA Has Unlawfully Claimed for Refunds and Waiver of Charges Support a Claim Under 46 U.S.C. §41102(a)

A. The Counterclaim Alleges a Facially Plausible Claim Against SEA

SEA's assertion that OOCL has failed to plead factual allegations to support its claim is patently ridiculous. In devising this argument, SEA has built and destroyed a strawman, incorrectly arguing that OOCL must allege false billing, classification or measurements. However, that argument ignores the substance of OOCL's Counterclaim.

The gravamen of OOCL's Counterclaim is *not* based upon an assertion that a shipper has misdeclared weight or falsified documents to achieve a lower freight charge, which is the mischaracterization that SEA has attempted to foist upon the Presiding Officer. OOCL's Counterclaim is instead premised upon facts demonstrating that SEA engaged in an artifice to recoup lawfully assessed detention and demurrage charges that are, as a matter of law, an extension of freight: "It is well recognized that demurrage is extended freight, that is, extended ocean freight charges, and that the risk of vicissitudes which prevent the loading or discharge of cargo within the stipulated lay days or free time allowed by tariffs, should be borne by the cargo interest, shipper or consignee, as the case may be." *Gulf Puerto Rico Lines, Inc. v. Associated Food Co., Inc.*, 366 F.Supp. 631, 636 (D. PR 1973); citing, *Yone Suzuki v. Central Argentine Ry.*, ("demurrage is extended freight and not damages for breach..." 27 F.2d 795, 805 (2nd Cir. 1928)).

The FMC's regulation for 46 U.S.C. §41102(a) is also instructive and suggests a potentially more fulsome application of the statute, instead of the narrow application urged by SEA's Motion:

§545.2 Interpretation of Shipping Act of 1984—Unpaid ocean freight charges.

Section 10(a)(1) of the Shipping Act of 1984 ([46 U.S.C. 41102\(a\)](#)) states that it is unlawful for any person to obtain or attempt to obtain transportation for property at less than the properly applicable rates, by any "unjust or unfair device or means." An essential element of

the offense is use of an “unjust or unfair device or means.” In the absence of evidence of bad faith or deceit, the Federal Maritime Commission will not infer an “unjust or unfair device or means” from the failure of a shipper to pay ocean freight. An “unjust or unfair device or means” could be inferred where a shipper, in bad faith, induced the carrier to relinquish its possessory lien on the cargo and to transport the cargo without prepayment by the shipper of the applicable freight charges. (emphasis supplied)

Here, SEA alleges it incurred more than \$11 million in detention and demurrage charges on shipments for which it contractually agreed to be responsible for the acts/omissions of its CNTs; did not contest the charges through the FMC-approved dispute resolution process established by OOCL; demanded, more than two years later, that all of these charges be refunded and that all future charges be waived without any evidence of causation or fault; and levied similar demands against virtually every ocean carrier which transported Samsung’s cargoes during the period in question. SEA is attempting to get the benefit of the service contract to which it agreed without paying the agreed upon price, much like a cargo owner canceling the check for a freight payment after the shipment has been delivered.

Since the existence of an unjust or unfair device or means can be inferred from conduct, and OOCL has alleged sufficient facts (including the provisions of the Service Contracts) as to SEA’s course of conduct to make its Counterclaim plausible, the motion to dismiss should be denied.

B. A Heightened Pleading Standard is Not Required by the FMC

SEA asserts that a cause of action sounding in fraud must meet the standards of FRCP 9(b). This argument also falls short of the mark.

Contrary to SEA’s assertion, OOCL has not asserted a cause of action for fraud in its Counterclaim. Further, SEA has not cited any FMC case which holds that such a showing is required to support a claim under § 41102(a). The cases cited by SEA in support of this argument, all of which are federal decisions analyzing causes of action sounding in fraud or false and misleading activity, are inapposite and not applicable to OOCL’s Counterclaim. Indeed, this is just another strawman

created by SEA in support of its Motion: i.e., a citation to case law describing the pleading criteria for a cause of action in fraud, then admitting that no allegation of fraud was made by OOCL.

C. The Counterclaim Provides Clear Notice of the Alleged Violation.

Commission Rule 62 requires counterclaims only to allege facts “sufficient to inform each respondent with reasonable definiteness” of the alleged violation. See 46 C.F.R. § 502.62(a)(3)(iii). The plausibility standard “simply calls for enough fact[s] to raise a reasonable expectation that discovery will reveal evidence” of the alleged violation. *Twombly*, 550 U.S. at 556. “A [counterclaim] survives a motion to dismiss even ‘[i]f there are two alternative explanations, one advanced by [the] defendant and the other advanced by [the] plaintiff, both of which are plausible.’” *Banneker Ventures, LLC v. Graham*, 798 F.3d 1119, 1129 (D.C. Cir. 2015) (citation omitted). At the pleading stage, the “choice between two plausible inferences that may be drawn from factual allegations is not a choice to be made by the court on a Rule 12(b)(6) motion.” *Anderson News, LLC v. Am. Media, Inc.*, 680 F.3d 162, 185 (2d Cir. 2012). Thus, it is improper to dismiss a counterclaim “that states a plausible version of the events merely because the court finds a different version more plausible.” *Id.* Such an inquiry confuses “probability and plausibility” by “weighing the competing inferences that can be drawn from the complaint.” SD3, 801 F.3d at 425. SEA, nonetheless, erroneously argues that “OOCL merely makes the conclusory allegation that SEA employed an ‘unjust or unfair device or means.’” Motion, p. 6-7. But OOCL specifically articulates what SEA did and explains why it embarked on this unlawful conduct: to reap the financial benefit of avoiding charges for lawfully assessed detention and demurrage charges that were attributable to SEA’s own shortcomings and those of its CNTs. More specifically, the Counterclaim has alleged, *inter alia*, that:

- SEA, which was named an Affiliate of Samsung in the Appendices to the Service Contracts, is bound to the latter’s terms and conditions. (CC, ¶¶ 9-12).

- SEA agreed to be jointly and severally liable for performance of the Service Contracts' terms and conditions, including the payment of all rates and charges. (CC, ¶ 13).
- Demurrage and detention charges reflected in invoices issued by OOCL to SEA and paid by SEA were assessed due to the failure of SEA and its CNTs to take delivery of shipments from terminals, and to return empty equipment to OOCL, prior to the expiration of free time. (CC, ¶¶ 22-3; 34-8).
- SEA did not challenge the individual demurrage and detention charges, at the time they were incurred, through the dispute resolution process that had been established by OOCL and reviewed, with approval, by the FMC. (CC, ¶¶ 20-21).
- SEA paid the individual charges, without objection; then, more than two years later, demanded in a two page letter that all charges be refunded and future charges be waived without identifying the affected shipments and without regard to fault. (CC, ¶¶ 18-19; 21-22; 25).
- OOCL requested information from SEA supporting its tardy demand for reimbursement but, other than a one page PDF summarizing the amounts claimed, SEA did not provide any documents or substantive evidence supporting its demand; and, following a brief meeting with OOCL to discuss a resolution, filed the within proceeding. (CC, ¶¶ 24-26).

These factual allegations offer more than mere “conclusions.” *Marine Transp. Logistics, Inc.*, 2019 WL 5206007, at *3 (quoting *Iqbal*, 556 U.S. at 678). Thus, the Counterclaim is more than sufficient to inform SEA with reasonable definiteness of the acts giving rise to OOCL’s claim under §41102(a).

SEA’s reliance on *OC Int’l Freight, Inc.*, FMC Dkt. No. 12-01, 2014 WL 5316336 (FMC July 31, 2014) is not persuasive. That case cites the criteria for a claim under § 41102(a); however, those

elements have been established by OOCL. Specifically, the knowing and willful element, at the pleading stage, can be inferred from SEA's behavior that has been specifically alleged in the Counterclaim.

SEA's reliance upon *Rana v. Michelle Franklin, d.b.a. "The Right Move"*, 5 F.M.C. 2d 7 (FMC May 25, 2022) is not a bar to OOCL's Counterclaim. It speaks to the requirement that a respondent's behavior must be knowing and willful and constitute "an unjust device or means"; however, those elements can be inferred from SEA's conduct, which conduct has been specifically alleged in the Counterclaim. As to transportation, SEA was named as an Affiliate in the Service Contracts and was specifically bound to their terms and conditions. Further, it was named as the consignee on thousands of bills of lading which were issued to Samsung for the transportation of its products to SEA. Upon information and belief, SEA's parent instructed OOCL to issue invoices for charges at destination to its U.S. agent, SEA. SEA benefitted from OOCL's service and the use of its containers. SEA now seeks to recoup what it had agreed to pay OOCL. It is ludicrous for SEA to state, with a straight face, that it has not benefitted from transportation,³ the fulfillment of which involves the assessment of demurrage and detention when delivery of shipments and the return of

³ *Norfolk Southern Railway Company v. Kirby* 543 U.S. 14 (2004), "a maritime case about a train wreck" established that inland transit under an ocean bill of lading is part of one maritime contract: "Contracts reflect the new technology, hence the popularity of 'through' bills of lading, in which cargo owners can contract for transportation across oceans and to inland destinations in a single transaction." 543 U.S. 14, 25-26. Pursuant to the Service Contracts, Samsung instructed OOCL to issue nonnegotiable bills of lading or seaway bills showing SEA as consignee. (CC, ¶8). SEA, as the consignee and owner of cargo shipped under a bill of lading, is therefore bound to its terms and conditions. See, *Farrell Lines v. Inc. v. Columbus Cello-Poly*, 32 F. Supp. 2d 118 (S.D.N.Y. 1997), citing *Pasztory v. Croatia Line*, [918 F. Supp. 961](#) (E.D.Va. 1996); *Bison Pulp Paper Ltd. v. M/V PERGAMOS*, No. 89 Civ. 1392, 1995 WL 880775, at *14 (S.D.N.Y. Nov. 29, 1995); *Blue Ocean Lines v. Universal Process Equip., Inc.*, No. 93 Civ. 1722, 1993 WL 403961 at *2 (S.D.N.Y. Oct. 7, 1993), *aff'd*, 71 F.3d 405 (2d Cir. 1995) (table); *Oman Refinery Co. LLC v. MT Bertina*, No. CV 92 3616, 1992 WL 471304, at *2 (C.D.Cal. Sept. 25, 1992); *Dukane Fabrics Int'l. Inc. v. M.V. "Hreljin"*, [600 F. Supp. 202, 203](#) (S.D.N.Y. 1985); *Paterson, Zochonis (U.K.) Ltd. v. Compania United Arrow, S.A.*, [493 F. Supp. 626, 629-30](#) (S.D.N.Y. 1980).

equipment is not timely performed and, as established above, these costs have been held to be an extension of freight. *See*, Sub-Points A and C, *supra*.

As OOCL has alleged sufficient facts to support the Counterclaim, the Motion should be denied.

D. The *Noerr-Pennington* Doctrine is Not Applicable to OOCL's Counterclaim

This is another principle which SEA misapprehends and upon which its reliance is misplaced.

It should be clear from the above discussion of the facts giving rise to the Counterclaim that the behavior which OOCL claims to be a violation of § 41102(a) is not the filing of the Complaint itself, which is merely the culmination of SEA's attempt to obtain service from OOCL at less than the rates or charges to which it agreed. It is the unfair and unjust effort by SEA to avoid its contractual obligations underlying the Complaint that is the subject of the Counterclaim. .

Accordingly, SEA's reliance upon *Noerr-Pennington* in support of dismissal is misplaced.

II. OOCL Should be Granted Leave to Amend its Counterclaim if its Allegations are Determined to be Insufficient

Should the Presiding Officer determine that OOCL's Counterclaim is insufficient on its face, OOCL should be granted leave to amend under the Commission's Rules of Procedure and corresponding criteria under the Federal Rules of Civil Procedure. This principle has been recognized in other Commission proceedings:

The rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint; however, Commission Rule 12 provides that "for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), "a party may amend its pleading once as a matter of course" within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that period, an amended pleading is permitted with opposing party's written consent or leave of court which, should be freely given when justice so requires. F.R.C.P. 15(a)(2). "Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments."

Impact Products, LLC and Safety Zone, LLC v. Yang Ming Marine Transport Corp., 2024 WL 4474515 (citing *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted)); see also *Foman v. Davis*, 371 U.S. 178, 182 (1962) (ALJ Order Granting Motion to Amend Complaint). See, also, *CCMA, LLC v. Maersk A/S and Ports America Chesapeake, LLC* 2022 WL 458571, at *1 (prompt permission seeking leave to amend should be liberally granted). Moreover, “Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments.” *Bancoult v. McNamara*, at 8 (citations omitted).

As such, if the Presiding Officer determines that the Counterclaim is insufficient, Respondent should be granted leave to amend its Counterclaim.

CONCLUSION

For the reasons articulated in this Response, the Presiding Officer should deny SEA’s motion to dismiss the Counterclaim.

If the Presiding Officer finds the Counterclaim insufficiently alleges a violation of the Shipping Act, Respondent respectfully requests leave to amend the Counterclaim within twenty (20) days of the issuance of his decision.

DATED: January 21, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on the 21st day of January, 2025, a true and correct copy of the foregoing **RESPONDENTS' RESPONSE TO COMPLAINANT'S MOTION TO DISMISS THE COUNTERCLAIM** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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